

STUDY GUIDE UNODC



Agenda 1 : Reviewing the Role of Civil Society for Effective Crime Prevention

Agenda 2 : Combating Transnational Environmental Organized Crime





Letter from R&D

Dear Delegates,

The Department of Research & Development of MUNSociety MPSTME welcomes you to the 11th edition of Mumbai MUN! Our department upholds a proud tradition of facilitating meaningful discourse on national and international matters, encompassing both historical events and current issues.

We are primarily tasked with formulating agendas and preparing comprehensive study guides. We have created detailed and engaging guides aimed at providing valuable resources for all delegates.

This year's theme, "Redefine the Norm," challenges us to think beyond conventional solutions and embrace innovative approaches to global challenges. In a rapidly evolving world, traditional methods often fall short of addressing contemporary issues. We believe that transformative change requires the courage to question established practices and the creativity to envision alternative pathways.

With this theme in mind, we have thoroughly picked agendas and committees that demand fresh perspectives, challenge conventional thought, and encourage innovative approaches to problem-solving. In this study guide, you will find well-researched background information to help you prepare for your committee sessions.

We, as facilitators, aim to provide you with the intellectual arsenal to combat any challenges that you might face and make the most of your Mumbai MUN experience.

We look forward to your active participation and contributions during Mumbai MUN and are confident that, together, we can make this conference a memorable and enriching experience for all.

Best wishes,

Department of Research & Development,
MUNSociety MPSTME.

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Note: The QARMAs will be released pre-conference, post consultation with the Executive Board.

Agenda 1: Reviewing the Role of Civil Society for Effective Crime Prevention

COMMITTEE OVERVIEW

Established in 1997, the United Nations Office on Drugs and Crime (UNODC) is the United Nations' dedicated body for combating illicit drugs and international crime.¹ UNODC is mandated to support the Member States in facing threats and impact of drugs, crime and terrorism, while offering support for putting into effect international treaties, fortifying criminal justice institutions, and boosting law enforcement capacity.

In alignment with the United Nations Millennium Declaration, member states also resolved to intensify efforts to fight transnational crime in all its dimensions, to redouble the efforts to implement the commitment to counter the world drug problem and to take concerted action against international terrorism.² Two principal, policy-making governing bodies, namely the CND (Commission on Narcotic Drugs) and the CCPCJ (Commission on Crime Prevention and Criminal Justice) are mainly responsible for overseeing the work of UNODC.³

AGENDA OVERVIEW

Civil society is sometimes equated with non-governmental organisations (NGOs) and usually excludes Government and private businesses. But, civil society can be quite diverse. Civil society, broadly, can include individual persons, activists, formal and informal associations, academics, social movements, and religious organisations. It

can work with local, national, or international goals in mind.⁴

Civil society is an extended arm for crime prevention and in collaboration with government, law enforcement and local community is ensuring a safer and more just society. There are also grass-roots and community mobilisation projects run by civil society like youth mentoring programs, neighbourhood watch programs, violence prevention workshops. This agenda focuses on addressing how grassroots engagement can be leveraged to bring down crime rates and increase safety levels through communal action. This is useful when governments are destabilised, under conflict or not equipped to handle a crime.

INTRODUCTION

Civil society is generally understood as the arena of voluntary, collective actions of an institutional nature around shared interests, purposes, and values that are distinct from those of the state, family, and market. Civil society consists of a large and diverse set of voluntary organisations and comprises non-state actors and associations that are not purely driven by private or economic interests, are autonomously organised, typically show civic virtue, and interact in the public sphere.

These may be:

- Special interest groups
- Faith-based organisations
- Traditional and community groups
- Researchers and research institutions

¹ United Nations Office on Drugs and Crime. "UNODC." *United Nations Office at Vienna*, www.unodc.org/unodc/en/unodc.html

² United Nations Office on Drugs and Crime. "General Assembly Resolution 65/230." 2011, www.unodc.org/documents/Cybercrime/General_Assembly_resolution_65-230_E.pdf

³ United Nations Office on Drugs and Crime. "Commissions." www.unodc.org/unodc/en/commissions/index.html

⁴ ACT4RuleOfLaw. "Civil Society." www.act4ruleoflaw.org/en/news/civilsociety

- Human rights and advocacy organisations
- Conflict resolution and peacebuilding NGOs
- Social and political movements

BACKGROUND

As cities and industries changed over the 19th century, worries about poverty, crime, and social disruption increased.⁵ With the goal of addressing societal ills through humanitarian endeavours, civic-minded persons founded philanthropic organisations and reform movements. For instance, in an effort to bring order to charitable efforts and prevent fraud, the Charity Organisation Society was founded in London in 1869.⁶ These early civil society organisations understood that socioeconomic circumstances had a big impact on crime.

In reaction to social inequalities, organised civil society initiatives began to gain traction in the middle of the 20th century. The importance of grassroots involvement was highlighted by the civil rights movement, anti-war demonstrations, and other social movements in the 1960s and 1970s. For example, groups like the American Civil Liberties Union (ACLU) promoted changes to the judicial and law enforcement systems, emphasising problems like racial discrimination and police brutality.⁷

The 21st century has seen a global institutionalisation and recognition of civil society's role in crime prevention. Global CSOs such as Amnesty International, Human Rights Watch, etc are playing pivotal roles in crime

prevention. Law enforcement and government agencies have started to realise how important it is to form alliances with civil society organisations.

TYPES OF CIVIL SOCIETIES

Civil Societies may be classified into 2 major types:

- Civil society Units
- Civil Society Organisations

Civil Society Units

Civil Society Units (CSUs) are specialised bodies within parent organisations, such as international or governing bodies, oftentimes within their outreach division. The main function of these units is to collaborate with civil society organisations, allowing such non-governmental groups to collude with state actors and legislators in an official capacity. These bodies predominantly act as a link between governments or intergovernmental organisations and non-governmental bodies i.e. Civil Society Organisations (CSOs), thereby enhancing transparency in policy-making and providing a platform for networking among civil society groups, government representatives and policy-makers.

They also organise regular briefings, assist in communication and provide technical support for CSOs.

United Nations Civil Society Unit

The United Nations Civil Society Unit is within the Outreach division of the UN Department of

⁵Civil Society Documentation in International Criminal Justice <https://academic.oup.com/jicj/article/22/2/311/7665827>

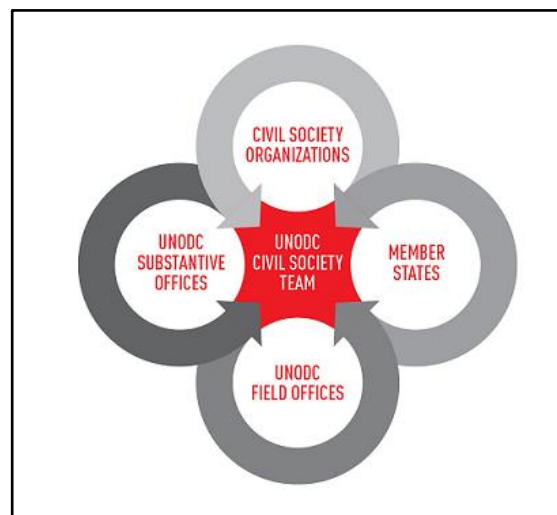
⁶Charity Organization Societies: 1877-1893. Social Welfare History Project. <https://socialwelfare.library.vcu.edu/eras/civil-war-reconstruction/charity-organization-societies-1877-1893/>

⁷ ACLU Staff. (2024). ACLU History: The ACLU and the Bill of Rights. <https://www.aclu.org/issues/free-speech/aclu-history-aclu-and-bill-rights>

Global Communications.⁸ It is mandated to link the UN with civil society organisations whose directives align with the goals and principles of the United Nations through a variety of initiatives.

While there is no formal date of establishment of this body, the UN's commitment to collaborating with civil society dates back nearly to its inception. This commitment was further solidified by the Economic and Social Council Resolution 1996/31, which outlined the basic framework for the consultative relationship between the UN and NGOs.⁹

Over 1,500 CSOs with strong information programmes on issues of concern to the United Nations are currently in formal association with the Department of Global Communications, giving the United Nations valuable links to people and communities around the world. The UNCSU helps CSOs gain access to and disseminate information about the range of issues in which the United Nations is involved, to enable them to more effectively carry out their activities in support of the UN Charter and to raise awareness among public audiences about the work of the Organization.¹⁰



Civil Society Units
Source: UNODC

European Economic and Social Committee

The European Economic and Social Committee (EESC) is an EU consultative body consisting of representatives of the various economic and social components of organised civil society. Under its Rules of Procedure, the Committee is divided into three groups, representing employees, employers and the other organised economic and social participants in civil society i.e. diverse interests. The EESC serves as a bridge between different EU institutions and such groups.¹¹

Its main role is in an advisory capacity, delivering opinions to EU institutions on the impact of Commission proposals on those most directly concerned. This enables the decision-making bodies to gain a better idea of what changes may be necessary to garner wider public support.

⁸United Nations. "About Us." *Civil Society*, www.un.org/en/civil-society/page/about-us

⁹United Nations Office on Drugs and Crime. (1996). *Resolution 1996/31: The role of non-governmental organisations in the work of the United Nations* [PDF]. https://www.unodc.org/documents/NGO/NGO_Resolution_1996_31.pdf

¹⁰United Nations. "UN and Civil Society." www.un.org/en/get-involved/un-and-civil-society

¹¹European Economic and Social Committee- Europarl <https://www.europarl.europa.eu/factsheets/en/sheet/15/the-european-economic-and-social-committee>

African Union CIDO

The Citizens and Diaspora Organizations Directorate (CIDO) is responsible for implementing the African Union's vision of a people-oriented and driven organisation based on a partnership between governments, civil society and diasporas.¹² The directorate consists of the civil society and diaspora divisions.

The body is responsible for mainstreaming civil society engagement into the AU's processes, departments and organs. It also facilitates the identification and utilisation of expertise that abounds within civil society organisations across the continent., while ensuring effective participation of civil society in the activities of the African Union.

National CSUs

National Civil Society Units serve as government-established bodies or platforms of separate nations or countries that work with civil society organisations.

Civil Society Organisations

Human Rights Watch

Human Rights Watch is one of the world's leading non-governmental organisations dedicated to defending, advocating for and protecting human rights.¹³ Created in 1978, as the Helsinki Watch, to monitor the governmental compliance of the Soviet Union to the Helsinki Accords, the organisation expanded into 'Americas Watch', 'Asia Watch' and further, until it eventually adopted its current title in 1988.

Human Rights Watch is known for its accurate fact-finding, impartial reporting, effective use of media, and targeted advocacy, often in partnership with local human rights groups. Their primary objectives are to investigate, with researchers working on the field in over 100 countries to uncover vital data, to expose this data and create awareness, and to advocate by meeting with governments, the United Nations, rebel groups, corporations, and others to see that policy is changed, laws are enforced, and justice is served.¹⁴

Amnesty International

Amnesty International is one of the world's oldest and largest grassroots human rights organisations. With its foundation in 1961, as simply groups of people around the world responding to an article about those unjustly imprisoned for exercising their human rights, the organisation rapidly grew into a global movement with millions of supporters.¹⁵

Their primary mission is to undertake research and action focused on preventing and ending grave abuses of these rights. Throughout its history, Amnesty International has achieved notable milestones, including the release of tens of thousands of prisoners through concerted campaigning against unjust imprisonment. Its advocacy has contributed to the establishment of key international conventions, including the United Nations Convention Against Torture and the International Criminal Court. The organization was awarded the Nobel Peace Prize

¹²AU- Citizens and Diaspora Organizations Directorate <https://au.int/diaspora-civil-society-engagement>

¹³Human Rights Watch <https://www.hrw.org/about/about-us>

¹⁴ The Coalition for Human Rights in Development - HRW <https://rightsindevelopment.org/member/human-rights-watch/>

¹⁵About Us. (2024). Amnesty International. <https://www.amnestyusa.org/about-us/history/>

in 1977 for its defence of human dignity against torture.¹⁶

Red Cross

The International Federation of Red Cross and Red Crescent Societies (IFRC) is the world's largest humanitarian network. The IFRC acts as a coordinating and uniting body for local Red Cross and Red Crescent actions in more than 191 countries, bringing together more than 16 million volunteers.

The IFRC was founded in 1919 in Paris in the aftermath of World War 1, with a simple objective to improve the health of people in countries that had suffered greatly during the war.¹⁷

The work of the Red Cross focuses mainly on healthcare, running vaccination campaigns, first aid training as well as providing aid during natural disasters, public health emergencies and armed conflicts.¹⁸ They also focus on supporting underprivileged and marginalised sections of society, such as refugees, the elderly and the ill, by helping provide aid and support, social services and host wellness programs.

GLOBAL CRIME CHALLENGES

Civil Society Organisations play a pivotal role in global crime prevention, and address a wide range of issues and human rights violations.

Gender-based crimes

Gender-based violence (GBV) is a phenomenon deeply rooted in gender inequality and continues to be one of the most notable human rights violations within all societies. It is violence directed against a person because of their gender. Both women and men experience GBV but the majority of victims are women and girls. Violence negatively affects women's general well-being and prevents women from fully participating in society. It impacts their families, their community, and the country at large.¹⁹

Over one-third of women and girls globally will experience some form of violence in their lifetime. However, this rate is higher in emergencies, conflict, and crisis, where vulnerability and risks are increased and most often family, community, and legal protections have broken down.

In the face of devastating, unjust violence, individual survivors and communities often turn to local women-focused civil society organisations for both immediate support and long-term community-based solutions. Local women-focused CSOs work on the ground, day in and day out, with years of expertise in community-specific issues and know how and when to take action, and they can do so in a timely and effective manner.²⁰

¹⁶Amnesty International. (2003). Speak out for human rights. <https://www.amnesty.org/en/wp-content/uploads/2021/06/org100042003en.pdf>

¹⁷International Federation of Red Cross and Red Crescent Societies. Our History and Archives. n.d., <https://www.ifrc.org/who-we-are/about-ifrc/our-history-and-archives>

¹⁸International Federation of Red Cross and Red Crescent Societies. "About IFRC." www.ifrc.org/who-we-are/about-ifrc

¹⁹Council of Europe. "What Is Gender-Based Violence?" Gender Matters, www.coe.int/en/web/gender-matters/what-is-gender-based-violence.

²⁰Women Deliver. (2021). *Women-focused CSOs: the front lines of the global gender-based violence response*. Medium. <https://womendeliver.medium.com/women-focused-csos-the-front-lines-of-the-global-gender-based-violence-response-acb121c55170>

Human Trafficking

Human Trafficking is the recruitment, transportation, transfer, harbouring or receipt of people through force, fraud or deception, with the aim of exploiting them for profit.²¹ People of all genders, ages and backgrounds can become victims of this crime, which occurs in every region of the world.

Many, perhaps the majority of CSOs, include awareness-raising and community economic development activities as part of their efforts to prevent trafficking in persons. A substantial number provide support and assistance to help protect victims. A smaller number of CSOs assist law enforcement agencies in the investigation and prosecution of trafficking cases by providing information and evidence on suspected trafficking activities in the communities in which they are working.²² They may also provide legal assistance to victims.

Organised Crime

Organised crime thrives worldwide, affecting governance and political processes, and weakening the advancement of the rule of law. It encompasses, inter alia, illicit trafficking of firearms, drugs, protected species, cultural property, or falsified medical products and, among its most severe manifestations, human trafficking and the smuggling of migrants. It also includes the laundering of proceeds of crime and obstruction of justice.²³ With revenues estimated

in the billions, their criminal enterprises closely resemble those of legitimate international businesses. They have operating models, long-term strategies, hierarchies, and even strategic alliances, all serving the same purpose: to generate the most profits with the least amount of risk.²⁴

Civil society can use its close interactions with the individuals and communities affected by such illicit crimes to develop innovative reintegration models that place victim empowerment at the core of the aftercare system. CSOs are engaged in local communities, where ownership of initiatives against organised crime is formed, leading to more sustainable response measures. Similarly, the media is critical in the role it plays holding governments to account and provides a voice for communities by mobilising civil society against the threat of organised crime among local populations.

White-Collar Crimes

The term “white-collar crime” refers to the full range of frauds committed by business and government professionals. White-collar crime is generally non-violent in nature and includes public corruption, health care fraud, mortgage fraud, securities fraud, and money laundering, to name a few.²⁵

Many white-collar crimes are especially difficult to prosecute because the perpetrators use

²¹Human-Trafficking. (2024). United Nations : Office on Drugs and Crime.
<https://www.unodc.org/unodc/en/human-Trafficking/Human-Trafficking.html>

²²E4J_Module_10_TIP.ppsx. The Role of Civil Society in countering Trafficking in persons. (2019).
https://www.unodc.org/documents/e4j/tip-som/E4J_Module_10_TIP.ppsx

²³Author(s) T F Coon. (2024). *Organised Crime - What Is It?* | Office of Justice Programs. ojp.gov.
<https://www.ojp.gov/ncjrs/virtual-library/abstracts/organized-crime-what-it>

²⁴Organised crime. (2024). interpol.int. <https://www.interpol.int/en/Crimes/Organized-crime>

²⁵LII. (2024). *white-collar crime*. LII / Legal Information Institute. https://www.law.cornell.edu/wex/white-collar_crime

sophisticated means to conceal their activities through a series of complex transactions. Whistleblowers are particularly helpful to prosecutors of white-collar crime, because these whistleblowers report internal wrongdoing.

Many CSOs provide legal and technical support to such whistleblowers and advocate for their protection. They are also responsible for tracking and reporting on such crimes, thereby holding governments or large corporations accountable, and enhancing transparency.

KEY ROLES

Advocacy

The ideas “civil society” and “advocacy” are centrally important to any group or organisation that seeks to reach a goal through persuasion rather than coercion.

Civil society organisations (CSOs) play a vital role in advocating for social change and promoting the interests of marginalised communities. Advocacy is an essential tool for CSOs to influence public policy, raise awareness about issues, and bring about positive change in society. Civil society advocacy includes influencing decision-makers, media outreach, citizen education, and various forms of civic engagement.

While individuals, political lobbyists, and lawyers can conduct advocacy to advance their points of view, civil society organisations have become increasingly prominent in influencing the policies and programs of governments, corporations, and other institutions.²⁶ These CSOs may primarily exist for other purposes, with advocacy serving as a secondary aspect to their work.

Research

Civil society organisations have a key role to play in research and evidence generation, through involvement in formal processes of research. They also work to provide the views of citizens and use evidence to provide oversight of the government operations. By gathering and presenting such data, CSOs can improve their own service delivery, influence the formulation and evaluation of policy and enhance their own public legitimacy.

The three main roles grassroots CSOs take on in participatory research are a technical role in the production of data and knowledge; a governance role in the deliberation on research activities and risk assessment; and an advocacy role by campaigning for transformative knowledge. These roles determine the ability of CSOs to generate legitimacy and rely on members belonging to different spheres of society, having varied scientific skills and connections to marginalised communities. CSOs can engage with governments, rally communities, and support their assertions with research.

Monitoring

International and local civil society groups monitor relevant issues such as the human rights situation, or the implementation of agreements, and provide recommendations and information to decision-makers or human rights and advocacy groups.²⁷ Such monitoring can work to hold governments and armed groups accountable for abuses or substandard performance, and can also serve as an early warning system.

Monitoring activities are most effective when designed to harmonise with protection and

²⁶How Civil Society Organizations Can Promote and Protect Human Rights - DT Institute. <https://www.dt-institute.org/how-civil-society-organizations-can-promote-and-protect-human-rights-in-challenging-contexts/>

²⁷Dagh Hammarskjöld Foundation. "Civil Society and the Challenge of Global Governance." DHF DD63, 2016, pp. 108-118, www.daghammarskjold.se/wp-content/uploads/2016/01/DHF_DD63_p108-118.pdf

advocacy initiatives. For example, the International Crisis Group (ICG) monitors the situation in conflict-affected countries and provides political analysis and recommendations to decision-makers. Due to ICG's high profile, quality of analysis, and international network and media coverage, it has become an influential monitoring institution.

Lobbying

Lobbying is defined as "any direct or indirect communication with public officials, political decision makers or representatives for the purposes of influencing public decision-making, and carried out by or on behalf of any organised group."²⁸

CSOs confront many obstacles in lobbying despite their crucial function, such as the administrative strains brought on by lobbying laws. These rules may erect obstacles that prevent CSOs from effectively participating in advocacy campaigns.²⁹ Furthermore, CSOs could run into financial constraints that limit their ability to continue long-term lobbying campaigns.

Victim Support

Crime takes an enormous physical, financial, and emotional toll on victims. However, in many criminal justice systems, victims of crime are often forgotten and sometimes even re-victimized by the system itself.³⁰ They are rarely

allowed to fully participate in decisions that concern them and do not always receive the assistance, support, and protection they need. Redress for the harm they have suffered as a result of victimisation is often not available and, when it is, it is too often insufficient or comes too late. Victim support focuses on the need to prevent victimisation, to protect and assist victims, to treat them with compassion, and to respect their dignity.

CSOs take the lead in providing specialist services for crime victims. They frequently do this on an ad hoc basis, which is not coordinated with other actors inside or outside the criminal justice system.

Legal aid

Legal aid is a critical component to ensuring access to justice. Indeed, it is a human right in criminal cases and a component of the fundamental right to a fair trial as recognized in the International Covenant on Civil and Political Rights. Whether in criminal or civil matters, access to legal aid for individuals with limited means or who are in situations of vulnerability is critical to achieving fair and just outcomes.³¹

CSOs assist crime victims by providing legal advocacy and representation, making sure they are treated fairly by the legal system. Victim Legal Assistance Networks and similar organisations provide comprehensive legal services that extend beyond criminal cases.³² This can cover consumer

²⁸ Lobbying Transparency. "Lobbying Transparency: A Global Overview." 2021, www.lobbyingtransparency.net/lobbyingtransparency.pdf

²⁹United Nations Office on Drugs and Crime. "The Role, Risks, and Challenges of CSOs Fighting Corruption." *Education for Justice*, www.unodc.org/e4j/en/anti-corruption/module-10/key-issues/the-role--risks-and-challenges-of-csos-fighting-corruption.html

³⁰United Nations Office on Drugs and Crime. "Victims." *Justice and Prison Reform*, www.unodc.org/unodc/en/justice-and-prison-reform/cpcj-victims.html

³¹ JUSTICE. (2015). *Legal aid and human rights - JUSTICE*. JUSTICE. <https://justice.org.uk/legal-aid-human-rights/>

³²National Crime Victim Law Institute. "Wraparound Legal Assistance Networks." NCVLI, www.ncvli.org/what-we-do/legal-assistance/wraparound-legal-assistance-networks

rights, family law, immigration, and housing matters, meeting the various legal requirements that victims of crime may have. These services are especially helpful for people who might not be able to afford private legal representation.

Financial aid

CSOs frequently oversee or take part in financial aid programs that give money to crime victims to meet their immediate costs as a result of being victims. These programs are crucial in alleviating the financial burden that victims may face during their recovery process.³³ This financial assistance often covers medical bills, mental health counselling, funeral and burial expenses, lost wages, and, in some cases, relocation or housing assistance.

CSOs also, oftentimes, receive grants and funding from governmental bodies, which may be extended as financial aid for victims. For example, The United Nations Voluntary Fund for Victims of Torture awards hundreds of grants to civil society organizations worldwide to deliver medical, psychological, legal, social and other assistance to the victims of torture.³⁴

Community participation

Civil Society Organizations play a crucial role in promoting community interests and enabling involvement in the political process. These groups amplify the voices of marginalised groups, ensuring that their concerns are

addressed in public discussions and policy formulations.

In order to maintain community involvement in decision-making processes, active civic engagement is essential. CSOs empower people to interact with public institutions so they can express their demands and have an impact on the formulation of public policy.³⁵ CSO-facilitated community networking programs improve the ability of the local population to comprehend and participate in governance processes. They also equip people and groups to assume leadership positions in their communities by offering training and resources.

CHALLENGES FACED

Civil Society Organisations face a multitude of challenges that affect their operations, funding and outreach.

There are governments in various countries that give very limited civic space for CSOs' operations in the field of human rights and democratic development including limiting access to national and foreign funding. In fact, only 4% of the world's population are estimated to live in countries where fundamental civil society freedoms, association, peaceful assembly and expression are respected and CSOs are allowed to operate freely and effectively.³⁶ CSOs face difficulties particularly in the process of registration and other government authorization. There are several bureaucratic

³³World Bank. "Ensuring Funding for Victim Support Services." 2021, documents1.worldbank.org/curated/pt/803811511259339890/pdf/Ensuring-funding-for-victim-support-services.pdf

³⁴United Nations Office of the High Commissioner for Human Rights. "United Nations Voluntary Fund for Victims of Torture." www.ohchr.org/en/about-us/funding-and-budget/trust-funds/united-nations-voluntary-fund-victims-torture

³⁵ActionSEE. "Manual 4: How to Effectively Engage with Decision-Makers." 2018, resource.actionsee.org/app/uploads/2018/05/doc_manual_4.pdf

³⁶CIVICUS. (2019). *State of civil society report 2019: Executive summary*. https://www.civicus.org/documents/reports-and-publications/SOCS/2019/state-of-civil-society-report-2019_executive-summary.pdf

hurdles that affect CSO operations. In many regions, especially those governed by authoritarian or hybrid regimes, the registration of organisations is politicised, with authorities selectively granting registration to organisations that align with governmental interests while denying those that do not.³⁷

Many CSOs also struggle in accessing decision makers effectively. For instance, local NGOs advocating for policy changes on health or education may struggle to secure meetings with officials, resulting in missed opportunities to influence important policies.

Another major concern is that CSOs face several challenges due to fluctuating funding and administrative barriers in receiving grants, which ultimately deters financial aid for victims. For instance, recent cuts to the Crime Victims Fund led to a decline of \$700 million in available funding for victim services across the United States.³⁸

COLLABORATION WITH LAW ENFORCEMENT

Currently, there is a clear shortcoming in government frameworks regarding community engagement in public safety initiatives.

The foremost practice should be creating regular community policing forums where

representatives from civil society, including local NGOs and community leaders, can collaborate with law enforcement to discuss issues, share feedback, and work on joint initiatives to improve public safety. CSOs also encourage the formation of neighbourhood watch programs where residents actively participate in keeping an eye on their surroundings and reporting suspicious activities to the police. A neighbourhood watch program is a group of people living in the same area who want to make their neighbourhood safer by working together and in conjunction with local law enforcement to reduce crime and improve their quality of life.³⁹

EDUCATION, OUTREACH AND AWARENESS

Education is a vital part of civil society's role in spreading awareness. To educate the public on their rights, obligations, and resources, CSOs host workshops and training sessions, empowering local communities and helping prevent discrimination and inequality.⁴⁰ CSOs frequently organise popular support for a range of causes, defending the rights of underrepresented groups and pushing for societal change.⁴¹

Additionally, they are very important in bringing attention to international projects like the Sustainable Development Goals (SDGs). Through spreading awareness of these objectives, communities are better able to participate locally

³⁷Organization of American States. (n.d.). *Frequently asked questions about civil society*. http://www.oas.org/en/ser/dia/civil_society/faq.shtml

³⁸Benson, M. (2024, May 23). Crime victims may get fewer services as federal aid drops; states weigh how to help. *Stateline*. <https://stateline.org/2024/05/23/crime-victims-may-get-fewer-services-as-federal-aid-drops-states-weigh-how-to-help>

³⁹U.S. Department of Justice, Bureau of Justice Assistance. "National Neighborhood Watch Manual." 2020, bja.ojp.gov/sites/g/files/xyckuh186/files/Publications/NSA_NW_Manual.pdf

⁴⁰Education Out Loud. "The Role of Civil Society in Ensuring Education for All." www.educationoutloud.org/role-civil-society-ensuring-education-all

⁴¹FIIAPP. "Civil Society: A Key Partner in the Fight Against Racism and Intolerance." www.fiiapp.org/en/blog_fiiapp/civil-society-a-key-partner-in-the-fight-against-racism-and-intolerance/

in global initiatives and see the value of making a positive impact on a more inclusive and peaceful world.

Social media and other digital platforms inclusive of traditional media are also effective tools for CSOs to raise awareness about issues and promote their causes. Social media can be used to mobilise supporters, share information, and generate public debates around social issues.⁴²

COLLABORATION WITH THE UN

IFRC and UNHCR

The International Federation of Red Cross and Red Crescent Societies (IFRC) works closely with the UN Refugee Agency (UNHCR) in providing humanitarian assistance to refugees and displaced people.⁴³

The two bodies have long worked together to help refugees and this collaboration has, in recent years, extended to include humanitarian operations involving internally displaced people, or IDPs.

UNHCR and the IFRC maintain a structured dialogue and coordination on areas of mutual concern related to the protection and assistance of refugees and IDPs, including family tracing, camp security and neutrality, legal detentions or incarcerations, mine clearance and awareness, and training on international humanitarian law and refugee law.⁴⁴

Under the humanitarian community's cluster approach to humanitarian crises, the IFRC and the UNHCR co-chair the emergency shelter cluster. Staff and volunteers of National Red Cross and Red Crescent Societies, meanwhile, often support displaced populations. They provide food, water, relief items, health care and psychosocial support to vulnerable people in UNHCR-run camps. IFRC and UNHCR are working together, in close partnership, in more than 35 refugee operations, including Uganda, Tanzania, Ethiopia and Kenya.⁴⁵



IFRC and Red Crescent Societies

Source: UNHCR

UNHRC and HRW in Syria

In order to address the grave human rights breaches in Syria—a nation that has seen more than ten years of conflict—the United Nations Human Rights Council (UNHRC) and Human Rights Watch (HRW) work together.

HRW conducts on-the-ground documentation and lobbying efforts to highlight the abuses

⁴²WOUGNET. "The Importance of Effective Advocacy Strategies for Civil Society Organizations." www.wougnnet.org/the-importance-of-effective-advocacy-strategies-for-civil-society-organizations

⁴³United Nations High Commissioner for Refugees. "International Federation of Red Cross and Red Crescent Societies." UNHCR, www.unhcr.org/about-unhcr/our-partners/un-and-international-institutions/international-organizations/ifrc

⁴⁴United Nations High Commissioner for Refugees. "Guidelines on the Protection of Refugees." 1991, www.unhcr.org/sites/default/files/legacy-pdf/3d4a5b634.pdf

⁴⁵International Federation of Red Cross and Red Crescent Societies. "Global Compact on Refugees: A Policy Brief." 2018, www.ifrc.org/sites/default/files/IFRC_PolicyBrief_GCR.pdf

endured by the Syrian populace⁴⁶, while the UNHRC uses official international frameworks through its resolutions and commissions of inquiry to monitor and report on the situation.⁴⁷ When combined, they seek to hold those responsible for violations accountable and advance regional human rights protection.

Both HRW and the UNHRC promote the protection of groups that are disproportionately affected by the ongoing violence, including women, children, and displaced people.

CASE STUDY

Stay Alive Program (Brazil)

The end of the 20th century saw a steep rise in homicide rates in the city of Belo Horizonte, Brazil and other Brazilian state capitals. Most of these homicides occurred in the slum areas of the cities, and involved young males under the age of 24.

In 2002, the Study Centre on Crime and Public Safety at the Federal University at Minas Gerais developed and piloted the Stay Alive program in the most violent slum areas of Belo Horizonte. Various community partners were brought together in the development and implementation of the crime prevention interventions. Such partners included; the Belo Horizonte City Office, State Social Defence Office,

local and federal police, business organisations, NGOs and local communities.

Many of the interventions targeted youth, and included components relating to social support, education and recreation. Crime and violence prevention training was provided to local police officers, community members as well as social health care and educational workers. The military police also established a routine patrol in the slums.⁴⁸

To facilitate community mobilisation and social cohesion, a forum was established to provide a space where community members could meet, on a monthly basis, to discuss issues such as unemployment, crime prevention, and education.

Thirty months after the implementation of the program, there was a decrease in violent crimes in the pilot areas. Homicides decreased by 47%, attempted homicides decreased by 65% and bakery robberies decreased by 46%. Concurrently, other 'non-violent' areas in the city experienced an 11% increase in violent crime.⁴⁹

CONCLUSION

Civil society plays a crucial and multi-layered role in effective crime prevention. They do this by facilitating community engagement, promoting social cohesion, and advocating for policy

⁴⁶World Report 2023: Rights Trends in Syria. (2023). Human Rights Watch. <https://www.hrw.org/world-report/2023/country-chapters/syria>

⁴⁷ United Nations Office of the High Commissioner for Human Rights. "Our Presence in Syria." www.ohchr.org/en/countries/syria/our-presence

⁴⁸Clemente, J. (2021, September 1). Brazil is battling its sky-high murder rate with a police-community alliance. Apolitical. <https://apolitical.co/solution-articles/en/brazil-is-battling-its-sky-high-murder-rate-with-a-police-community-alliance>

⁴⁹United Nations Office on Drugs and Crime. (n.d.). Case studies. <https://www.unodc.org/e4j/zh/crime-prevention-criminal-justice/module-2/case-studies.html>

changes, where they work as the essential agent to create safer surroundings by being able to mobilise resources, increase awareness, and facilitate communication between the community and law enforcement.

Thus, governments are essential in assisting civil society in preventing crimes. Through an environment of cooperation, governments can allow CSOs to carry out their activities effectively in association with their communities.

Agenda 2: Combating Transnational Environmental Organized Crime

AGENDA OVERVIEW

Environmental criminals are a threat not only to our planet's present but also to the future of it. Environmental crimes are not restricted by borders and span a great range from wildlife trafficking to illegal logging and hazardous waste dumping.⁵⁰ The nature of an offence is transnational if: it's committed in many states; if its management or impact is felt in another state; or if the organised criminal group has offences in other states. Environmental transnational crimes often showcase other offences from passport fraud, corruption and money laundering to human, drugs and weapons trafficking. As such, unlike other illegal trades, environmental resources are finite; hence, there is a greater sense of urgency to combat it.

INTRODUCTION

An organised crime is defined by the United Nations Convention against Transnational Environmental Crime (UNTOC) as a structured system with three or more criminal groups collaborating. It has identifiable patterns of behaviour that have endured and adapted through time, with an aim to commit serious, profit-driven crimes.

The motives behind transnational environmental crimes stem from the overlapping interests of corporate and organised crime, each driven by economic gain. Legal organisations often act as either enablers or primary initiators, attracted by

the high profits in trafficking wildlife, waste, and natural resources. Corruption is common, providing access and power through compromised officials or employees at key points like sea and airports, where illegal goods transit. The drive for profit also fuels such crimes, further blending corporate and organised motives into the global environmental black market.

There is a need for criminal justice responses to be modernised, strengthened and coordinated from source to end markets in times where technology expedites the ability for traffickers to reach global markets while corruption compromises enforcement and regulation for the same.

The Intergovernmental Science-Policy Platform on Biodiversity and Ecosystem Services (IPBES) concluded that overexploitation, which includes illegal wildlife trade, is one of the main reasons for biodiversity loss. This was further highlighted during the COVID-19 pandemic.

As law enforcement strengthens, the illegal markets will shift to countries with less stringent frameworks. As organised crime becomes increasingly sophisticated, there is an integration of online markets and exploitation of legitimate trade channels into the illicit supply chain.

It is also estimated that around 12 billion USD in potential annual revenues is foregone due to the illegal exploitation of natural resources. On the contrary, there has been a struggle to adequately

⁵⁰“Environmental Crime.” INTERPOL, www.interpol.int/en/Crimes/Environmental-crime

enforce laws as environmental crime rises on a global scale.⁵¹

Valued at 258 million with an annual growth rate of five to seven percent, environmental abuse takes the spot of being the fourth largest criminal activity in the world. With the ability to merge into other international crimes like Corruption, Counterfeiting, Drug trafficking, Cybercrime and Financial crime.

The potential sales and costs of illegal transnational business of just elephant and rhinoceros trading was projected at \$34–960 million a year by the World Wildlife Crime Report 2020.⁵²

WILDLIFE CRIMES

An increased sophistication of transnational organised crime groups is seen in more than 60% of countries with respect to the nature of crimes reported over the years.⁵³ Around 4000 plant and animal species were affected due to illegal trade in 162 countries and territories during 2015-2021.

⁵⁴

Wildlife Trafficking

There are increasing cases of wildlife trafficking particularly in wildlife from Africa and South-East Asia to other areas in Asia. This is owing to the widespread poverty and profitable market for exotic animal products.



Illegal Trade of Parts of Wildlife Animals
Source: IFAW

Wildlife Poaching

Poaching is a key challenge in tackling wildlife crime. It has almost always resulted in the wildlife getting disturbed, distressed or killed, particularly with elephants, rhinos and large carnivores. This has led to the public sentiment moving towards ensuring adequate action against the poachers. This has resulted in a militarised response to stop poaching thereby reducing wildlife crime.

Certain successes have arisen from actions outside of the militarised anti-poaching responses.⁵⁵

Wildlife Crimes at Sea

Environmental crimes

The exploitation and degradation of all the ocean's assets be it the resources to the fauna are termed environmental crimes at sea. They occur within the context of human activities that involve and interact with the ocean environment.

⁵¹2030 ICCWC VISION, [cites.org/sites/default/files/ICCWC%20Vision/ICCWC_VISION_2030.pdf](https://sites.org/sites/default/files/ICCWC%20Vision/ICCWC_VISION_2030.pdf).

⁵²"World Wildlife Crime Report 2024." UNODC, https://www.unodc.org/documents/data-and-analysis/wildlife/2024/Wildlife2024_Final.Pdf.

⁵³"Environmental Crime." UNEP, www.unep.org/news-and-stories/story/environmental-crime.

⁵⁴"World Wildlife Crime Report 2024." UNODC, https://www.unodc.org/documents/data-and-analysis/wildlife/2024/Wildlife2024_Final.Pdf.

⁵⁵Convergence of Wildlife Crime, globalinitiative.net/wp-content/uploads/2023/04/crime-convergence.pdf.

Fisheries crimes

The Food and Agriculture Organisation (FAO) terms illegal fishing as conducted 'by national or foreign vessels in waters under the jurisdiction of a state, without the permission of that state, or in contravention of its laws and regulations.'

Illegal fishing though low among local fishers can become a highly organised transnational crime covering other crimes like arms or narcotics trafficking along with the aforementioned fishing activities. Illegal fishing's annual losses are estimated to be as high as 23.5 billion USD.⁵⁶

There are also records of global tax revenue losses of \$2–4 billion due to illicit marine trade majorly affecting African and Asian countries.⁵⁷



Illegal, Unreported and Unregulated (IUU) Fishing
Source: National Maritime Foundation

Other crimes at sea cover from deliberate waste dumping, illegal extraction of natural resources to damages to pipelines and submarine data cables or other infrastructures due to either negligence to deliberate illegal attacks; and even cultural heritage related crimes like treasure hunting or desecrating war graves.

From destruction of coral reefs to endangering marine life there are multiple impacts felt at sea. Additionally, the food and financial security of communities living on the coasts are also severely impacted.

The United Nations General Assembly has explicitly recognized the connections between transnational organised crime and illegal fishing in some regions of the world.⁵⁸

ILLEGAL HAZARDOUS WASTE DUMPING

Commercial vessels dump 8,10,000 tons of oily waste internationally into the oceans. These dumps are illegal and intentional, which result in dead or infertile fishes or fishes creating toxic substances or deformed offspring. Additionally, these have harmful effects on slow-moving shellfish's habitats and seabird populations. Animals habiting in or around these coastal waters get either poisoned or suffocated by eating either the oily waste or other wildlife poisoned by it. 12% of all marine pollution is caused by vessel-source pollution, most of it caused by oil bunkering and is put through heavy regulation internationally.

Vessels illegally discharge their oily waste at sea in ports or along regular shipping routes to evade being caught. The most relevant conventions are the International Convention for the Prevention

⁵⁶Author links open overlay panelChristian Bueger a, et al. "Blue Crime: Conceptualising Transnational Organised Crime at Sea." *Marine Policy*, Pergamon, 29 June 2020, www.sciencedirect.com/science/article/pii/S0308597X20300270

⁵⁷ "World Wildlife Crime Report 2024." UNODC, https://www.unodc.org/documents/Data-and-Analysis/Wildlife/2024/Wildlife2024_Final.Pdf.

⁵⁸ *Combating Transnational Organized Crime Committed At Sea* www.unodc.org/documents/organized-crime/GPTOC/Issue_Paper_-_TOC_at_Sea.pdf.

of Pollution from Ships (MARPOL 1973/78)⁵⁹, and 1990 International Convention on Oil Pollution Preparedness, Response and Cooperation (OPRC), which covered prevention of pollution and the response in case of pollution from ships.

The convention is made to guarantee swift and fair compensation for all those affected by damage and the ship bunkers are liable for dumping the oil carried as fuel. This includes land damage, damage at sea and damage at Exclusive Economic Zones (EEZs) of States Parties. There is also the Bunkers Convention exclusively covering pollution damage modelled after the International Convention on Civil Liability for Oil Pollution Damage (1969) which required every registered vessel owner to have a compulsory insurance cover. Despite that, no agreement was made addressing discharge of oil as a transnational crime.

ILLEGAL LOGGING

Illegal logging is when 'timber is harvested, transported, processed, bought, or sold in violation of national or subnational laws'⁶⁰. It includes one or more of the following activities⁶¹:

Logging of protected species

Most nations have conservation laws to protect endangered or vulnerable species of trees. The illegal felling of such species and violation of such national laws is a preponderant problem and attributes majorly to illegal logging.

Logging in protected areas

The location also affects the legality of logging activities. Logging is prohibited (in most nations) in areas like national parks, ecological reserves, and other specific geographic areas.

Excessive logging

Excessive harvesting and logging beyond the permitted concession boundaries is also illegal.

Logging without permits or with forged permits

This can include multiple cases, such as when logging is carried out despite the expiry of a permit or the permit was never acquired in the first place. Additionally, forgery of permits and illegal issuance of logging concessions by government officials (in exchange for bribes), further promote illegal logging.

Illegal logging is a significant threat to the world's forests. Moreover, according to Interpol's 2019 statistics, about 50–90% of logging activities in tropical regions are illegal. Like other transnational organised crimes, illegal logging is carried out by organised syndicates infamously known as 'timber mafias'. These syndicates exploit legal loopholes and a lack of communication between agencies within and across nations to export and sell illegally logged timber. In order to propose solutions to this transnational issue, it is imperative to first understand the modus operandi of these mafias.

⁵⁹ Worldbank. (n.d.).

<https://documents1.worldbank.org/curated/en/601131468189861267/pdf/575080WPoARTFo1oBox353768Bo1PUBLIC1.pdf>

⁶⁰ Intergovernmental Actions on Illegal

www.chathamhouse.org/sites/default/files/public/Research/Energy,%20Environment%20and%20Development/intergovernmental_actions_on_illegal_logging_march_01.pdf.

⁶¹ ICCWC. (2022). Wildlife and Forest Crime Analytic Toolkit: Second Edition 2022.

https://www.unodc.org/documents/Wildlife/Toolkit_e.pdf

Modus operandi of the timber mafia

Corruption at different levels in the global timber supply chain due to weak governance systems facilitates the operations of these mafias, allowing them to profitably trade the illegally sourced timber. Bribing officials provides a safe passage for these cartels to illegally move timber. The timber is then laundered, i.e., the illegally logged and sourced timber is turned into 'legally certified timber that can be sold on international markets'⁶². This is possible due to complicity within government officials who issue licences for logging companies in exchange for monetary incentives. Apart from this, illegal timber is also smuggled across borders by mixing it with legally procured timber. The illegal logging of timber, although a lucrative business for these syndicates, has far-reaching environmental and economic impacts.

IMPACT OF TRANSNATIONAL ENVIRONMENTAL ORGANIZED CRIME

Environmental

Overexploitation of wildlife

Overexploitation is the most pre-eminent cause for environmental harm and second most for global biodiversity loss caused by illegal wildlife crime and trade causing extinction like situations

to these species. Across the four species groups namely mammal, bird, reptile, and amphibian species seizures were recorded for around 50 percent due to the intentional harvest threat as recorded by the IUCN Red List database who track the extinction risk to species. It was found that if 50 percent seizures were recorded, the proportion of mammals was the highest at 73 percent and birds came in lowest at 31 percent.

Deforestation and forest degradation

The world has lost one-third of its forests over the last 10,000 years, with half of this occurring in the last century.⁶³ This elucidates the accelerated pace of deforestation, of which illegal logging is a primary reason. For instance, a study highlighted by WWF in 2021 indicated that illegal logging activities accounted for approximately 94% of deforestation in the Amazon.⁶⁴

Climate Change

Forests act as 'carbon sinks' as they absorb carbon dioxide from the atmosphere and thus help mitigate the effects of climate change. However, illegal logging activities lead to the release of this stored carbon dioxide back into the atmosphere, thus compromising forests' ability to sequester carbon dioxide⁶⁵. As a result, many tropical forests around the world have now turned into

⁶²Transparency International. (2008). Timber Trafficking and Laundering: An AntiCorruption Approach. https://ciaotest.cc.columbia.edu/wps/ti/0021196/f_0021196_17609.pdf

⁶³Ritchie, H., & Roser, M. (2024, March 18). The world has lost one-third of its forest, but an end of deforestation is possible. Our World in Data. <https://ourworldindata.org/world-lost-one-third-forests>

⁶⁴New study shows illegalities in 94% of converted ecosystems in the Ama. (n.d.). https://www.panda.org/wwf_news/?2518441/New-study-shows-illegalities-in-94-of-converted-ecosystems-in-the-Amazon-and-the-Cerrado

⁶⁵What is the role of deforestation in climate change and how can "Reducing Emissions from Deforestation and Degradation" (REDD+) help? - Grantham Research Institute on climate change and the environment. (2024, August 16). Grantham Research Institute on Climate Change and the Environment. <https://www.lse.ac.uk/granthaminstitute/explainers/whats-redd-and-will-it-help-tackle-climate-change/>

'carbon sources' due to the losses owing to illegal logging.⁶⁶

Biodiversity loss

In addition, forests shelter, nurture, and support entire ecosystems, so any alteration to their natural state can have cascading effects on the biodiversity they sustain. The habitat degradation caused by illegal logging can hamper the ability of species to thrive and adapt to climate change. A 2020 study of birds' survival rates in Eastern Himalayas outlines how in primary forests, species show differing survival trends based on their elevational range. This implies that intact habitats allow for better adaptation to climate change. However, in selectively logged forests, survival rates remain constant, suggesting that these altered environments do not support the same demographic resilience.⁶⁷

Governance

The functions of the government institutions and the rule of law are undermined by wildlife crime. This harm is done majorly via corruption, illicit financial movements and money laundering across crime sectors and also leads to a loss of government revenues. This includes losses in potential revenues through taxes, trade licence fees, legal harvest and also tourism. Illegal fishing, logging, and other wildlife trade has cost around \$7–12 billion per year.

Social and Economic

Consequences of Wildlife Crime

Illegal wildlife trade deprives the people from the benefits they get from nature. According to a World Bank report⁶⁸ long-term economic losses on a global scale associated with illicit wildlife trade is about \$1–2 trillion per year. Businesses get affected owing to the increasing costs and losses for stakeholders including the landowners from the private sector. Non-monetary harm to humans include cultural, religious, spiritual, and historical by working in regions or affecting species that are associated with those traits.

According to an IUCN situation analysis in 2022, there is evidence of emerging diseases to be linked to wildlife trade with particular risks posed by illegal trades which ignore the necessary screening and control measures. Wildlife crime has also led to injury and the loss of human life of the people engaged in the protection of wildlife. A total of 2,351 deaths of wildlife rangers were recorded between 2006–2021.

Consequences of Illegal Trade and Logging

The trade of illegally logged timber is estimated to be worth about 51–152 billion USD per year. This underlines the economic impact illegal logging has on nations. Especially developing nations stand to face the repercussions of such unregulated trade. Through illegal logging, companies involved in the trade are able to evade taxes that they owe to the state. As a result, this has a direct economic impact on the affected nation. For example, due to the translational

⁶⁶Baccini, A., Walker, W., Carvalho, L., Farina, M., Sulla-Menashe, D., & Houghton, R. A. (2017). Tropical forests are a net carbon source based on aboveground measurements of gain and loss. *Science*, 358(6360), 230–234. <https://doi.org/10.1126/science.aam5962>

⁶⁷Srinivasan, U., & Wilcove, D. S. (2020). Interactive impacts of climate change and land-use change on the demography of montane birds. *Ecology*, 102(1). <https://doi.org/10.1002/ecy.3223>

⁶⁸Overview. (n.d.). World Bank. [https://www.worldbank.org/en/programs/global-wildlife-program/overview#:~:text=The%20estimated%20economic%20losses%20due,market%20\(World%20Bank%202019\)](https://www.worldbank.org/en/programs/global-wildlife-program/overview#:~:text=The%20estimated%20economic%20losses%20due,market%20(World%20Bank%202019))

illegal charcoal trade, African countries have to face an annual revenue loss of about \$1.9 billion.⁶⁹

In addition to depriving developing nations of tax revenues from the trade, a significant portion of the profits is syphoned into funding transnational criminal organisations. For instance, the illicit rosewood trade from Mozambique's Cabo Delgado province to China helps fund a large criminal network in the north of the country. An EIA investigation report highlights this trade yields approximately \$1.9 million of monthly revenue⁷⁰ for these insurgents. This has serious social repercussions for Mozambique, as it provides the financial backing required for these insurgent groups to expand their operations.

PAST INTERNATIONAL ACTIONS

Convention on International Trade in Endangered Species of Wild Fauna and Flora (CITES)

The CITES is an international agreement adopted in 1973 that regulates international trade in wildlife specimens to ensure that it does not threaten the survival of the species. Currently, there are 184 parties (i.e., states or regional economic integration organisations) to CITES. Species are segregated into 3 appendices under the convention based on the degree of protection they require. Out of these, species listed under Appendices 1 and 2 require special permits that warrant that the species is not illegally acquired and its export would not harm its population in the wild. Species listed under Appendix 3 on the other hand require export permits. Additionally, CITES encourages states to develop wildlife monitoring systems and introduce domestic

legislation and regulations to enforce CITES' provisions.

Wildlife Crime Initiative (2014)

The Wildlife Crime Initiative (WCI) was a strategic partnership between TRAFFIC (Trade Records Analysis of Flora and Fauna in Commerce) and WWF (World Wide Fund for Nature), which was set up to address the global poaching crisis that endangers wildlife species. The WCI works towards furthering its agenda of stopping poaching, trafficking, and buying of wildlife species. It advocates for the implementation of national and international policies to safeguard wildlife species. The WCI works in tandem with external partners like governments, NGOs, and UN agencies in order to promote higher enforcement standards within nations.

CASE STUDIES

The Trade of Tigers

The illegal tiger trade poses a significant threat to the species and is driven by the demand for their bones, skins, and other body parts in traditional medicine and luxury goods. This lucrative black market contributes to the decline of tiger populations, exacerbating their risk of extinction.

Tiger farms are captive facilities that keep or breed tigers to supply in the illegal commercial trade in tigers and their parts and products. These farms do not aid in tiger conservation efforts; instead, they perpetuate the transnational illegal tiger trade. According to the latest estimates, around 8,900 tigers live in captivity in East and Southeast Asia, with a majority (about 6,000

⁶⁹Illegal trade in wildlife and timber products finances criminal and militia groups, threatening security and sustainable development. (n.d.). UN Environment. <https://www.unep.org/news-and-stories/press-release/illegal-trade-wildlife-and-timber-products-finance-criminal-and>

⁷⁰Henshall, A. (2024, May 14). Mozambique-China rosewood trade: The illicit business fuelling an insurgency. <https://www.bbc.com/news/articles/c51nnzzkpkkyo>

tigers) located across 200 captive facilities in China. In the US, about 5,000 tigers are bred in captivity⁷¹. Moreover, the welfare of tigers is compromised by these farms, as they are often displayed to the public for entertainment purposes. This exposure to crowded and loud environments and the restraint that the tigers are kept under leads to physical and psychological stress⁷². These farms perpetuate the demand for tiger products, which in turn pressures the wild tigers, who face increased poaching in order to meet this inflated demand.

The high-reward-low-risk nature of this trade drives this illegal trade. Tigers (dead or alive) are mostly trafficked from parts of Africa and Southeast Asia to East Asia. Between 2000 and 2022, around 3,377 trafficked tigers were seized from over 50 countries.⁷³ Such trafficking and illegal trade continues despite the ban on international commercial trade of tigers under Appendix I of the CITES.

Illegal logging of Red Sanders

Red Sanders (*Pterocarpus santalinus*) a.k.a Red Sandalwood is a tree species native to Andhra Pradesh, in India. It is a very slow-maturing tree as it takes about 25-40 years to mature, adding to its lucrativeness. The heartwood of the Red Sanders has a high demand in both international and domestic markets. This has led to the illegal logging of this species, posing a threat to its existence.

The Problem

Red Sanders belongs to the 'Endangered' category within the International Union for Conservation of Nature (IUCN) and is classified as Schedule IV species under the Indian Wildlife Protection Act, 1972. Imports of the species are restricted while exports are banned under India's foreign trade policy. In India, however, tons of logs of the endangered species have been logged illegally and exported to countries where they are in high demand. Between 2016 and 2020, for example, China received 53.5% of the wood consignments, Hong Kong 25%, Singapore 17.8%, and the United States 3.5% during the same period.⁷⁴



Red Sanders Smuggling

Source: United Liberal Foundation

Current conservation efforts

To curb the rampant illegal logging of red sanders wood, the State Forest Department in Andhra Pradesh has set up check posts and identified bottlenecks to monitor the transport of the wood. The department has set up two special courts to fasten the trial of cases related to logging and smuggling of the Red Sanders. Moreover, e-surveillance of social media and e-commerce websites has been ramped up, and initiatives have been implemented to strengthen the protection of the species. Additionally, the

⁷¹WWF. (n.d.). Phasing Out Tiger Farms. <https://www.worldwildlife.org/projects/phasing-out-tiger-farms>

⁷²Captive Tiger Welfare | For Tigers. (n.d.). Fortigers. <https://www.fortigers.org/captive-tiger-welfare>

⁷³The illegal trade of tigers. (n.d.). WWF. https://tigers.panda.org/news_and_stories/stories/the_illegal_trade_of_tigers/

⁷⁴Factsheet on India's Red Sanders in illegal wildlife trade - Wildlife Trade Report from TRAFFIC. (n.d.). <https://www.traffic.org/publications/reports/factsheet-on-indias-red-sanders-in-illegal-wildlife-trade/>

creation of the Red Sanders Anti-Smuggling Task Force by the forest department in 2014 has helped control the smuggling of the prized wood to an extent.

The Probo Koala Illegal Hazardous Waste Dumping

In 2006, an Anglo-Dutch commodity trading company 'Trafigura' illegally dumped 528 cubic metres of toxic waste produced on its cargo ship 'Probo Koala' into the Ivory Coast⁷⁵.

Background

The waste produced onboard Probo Koala was a result of the process of 'caustic washing' that the company used in order to refine a dirty petroleum product called coker naphtha. In order to increase the profits Trafigura incurred on the sale of gasoline, it decided to mix coker naphtha (a cheap but extremely sulphurous petroleum product) with gasoline. But before its addition to gasoline, coker naphtha has to be cleaned through the process of caustic washing. The waste by-product of this is toxic 'spent caustic'. Spent caustic is a highly hazardous industrial waste containing high concentrations of chemicals like sulphides, mercaptans, and hydroxides⁷⁶. Trafigura did not have appropriate systems or a plan for a proper disposal of this toxic waste.

The company initially tried to dispose of the waste in Amsterdam by tying up with APS

(Amsterdam Port Services). However, Trafigura failed to fully disclose the true nature of contamination of the waste, and upon discovering the level of toxicity of the waste, APS demanded a higher payment. This 'high cost' (of about USD \$620,000) that APS demanded for disposing of the waste, caused Trafigura to look for other alternatives⁷⁷. The company eventually commissioned a local company (for a sum of USD \$17,000) 'Compagnie Tommy' to illegally dump the waste in Abidjan in the Ivory Coast. On the night of August 19, 2006, about 12 lorries dumped the waste in 18 locations in Abidjan.⁷⁸ The waste was dumped on roads, landfill sites, and densely populated areas.



Hazardous Black Sludge from a Garbage Dump in Abidjan, Ivory Coast
Source: VOA

Implications of the incident

The appalling effects of the dumping had to be faced by residents of Abidjan. The dumping caused about 15 deaths and left tens of thousands of people with neurological, digestive, respiratory, and other health problems. The

⁷⁵OHCHR. (2016, August 17). Ten years on, the survivors of illegal toxic waste dumping in Côte d'Ivoire remain in the dark. <https://www.ohchr.org/en/press-releases/2016/08/ten-years-survivors-illegal-toxic-waste-dumping-cote-divoire-remain-dark>

⁷⁶Alipour, Z., & Azari, A. (2020, June). COD removal from industrial spent caustic wastewater: A review. <https://www.sciencedirect.com/science/article/abs/pii/S2213343720300269?via%3Dihub>

⁷⁷Amnesty International. (2023, February 22). Côte d'Ivoire: The toxic truth: About a company called Trafigura, a ship called the Probo Koala, and the dumping of toxic waste in Côte d'Ivoire - Amnesty International. <https://www.amnesty.org/en/documents/afr31/002/2012/en/>

⁷⁸Leigh, D., & Hirsch, A. (2018, February 14). The boat that reeked – toxic voyage of the Probo Koala. The Guardian. <https://www.theguardian.com/world/2009/may/13/trafigura-ivory-coast-waste>

overpowering smell of the waste, coupled with the health risks associated with it, became a source of mental distress for the people of Abidjan. This incident underpins how a multinational corporation was able to exploit loopholes in enforcement and laws in various nations. It further underlines the failure of various nations to implement their obligations to prevent transnational movement and dumping of toxic waste and to protect the rights to health of those affected by the illegal dumping of such waste⁷⁹.

CONCLUSION

Combating transnational environmental organised crime is critical for preserving our planet's ecosystems and ensuring sustainable development. Thus, governments must adopt strategies that involve international collaboration, well-functioning law enforcement mechanisms and social outreach. Preventive measures require the unified global effort of governments, NGOs, and local communities in dealing with intricately connected networks of such illicit activities as poaching, logging, and pollution. Increasing cross-border cooperation between states, transferring intelligence and converging legal frameworks is imperative to obstruct and prevent organised crime efforts.

⁷⁹Amnesty International. (2024b, August 21). Cote d'Ivoire: Protecting the environment and people's right to health against actions by corporates. <https://www.amnesty.org/en/latest/campaigns/2024/08/cote-divoire-protecting-the-environment-and-peoples-right-to-health-against-actions-by-corporates/>